

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)

1. I recommend that US Embassy Bujumbura use other than full and open competition for the acquisition of 100,000 liters of diesel fuel oil from Interpetrol Burundi SA at the estimated cost is 151,000.00 U.S Dollars for diesel fuel.
2. **Nature and/or description of the action being approved.**
Post is in the process of awarding a new contract which is being worked by procurement. Approval of purchasing the 100,000 liters of diesel fuel oil will give enough time to work on new contract and purchase the diesel and gasoline fuel from Interpetrol Burundi SA at the same price rate as previous contract.
3. **A description of the supplies or services required to meet the agency's needs.**
Interpetrol Burundi SA is one of the major suppliers of diesel fuel with mass storage, they are reliable and accountable based on previous supply made to the embassy in the last contract with them, they have meet urgency needs. Additionally, the vendor is able to provide necessary fuel quantities even as the country experiences fuel shortages.
4. **An identification of the statutory authority permitting other than full and open competition.**

☐ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.

5. **A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).**

A proposal to issue the order to Interpetrol Burundi SA as the current Contract had expired on March 24, 2023, and a new contract is in the process. Given the fuel shortages in the country, it is known that Interpetrol Burundi SA can provide the requested fuel for the duration.

6. **A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOpps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).**

FebBizOPs is not used under the current contract. The supplier selected to supply the diesel fuel can locally deliver the right product at the Embassy Bujumbura as previously performed.

- 7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

Contracting Officer anticipates cost to the USG is fair and reasonable.

- 8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.**

A market survey was not conducted because the 100,000 liters of diesel fuel oil will be purchased with the same price as per the previous contract to buy post time to work on the new supply contract.

- 9. Any other facts supporting the use of other than full and open competition.**

Interpetrol Burundi SA is a major buyer and supplier of diesel fuel with mass storage that Burundi as a country depend on.

- 10. A listing of sources, if any that expressed, in writing, an interest in the acquisition. N/A**

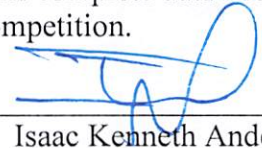
- 11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

Full and open competition is being used for the contract renewal.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

01/24/2024
Date



Name Isaac Kenneth Andebe
Title Electrical Engineer

Requirements Office

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

1/24/24
Date



Name Jamie Fleischhacker, M
Title Contracting Officer

1. The first part of the report is a general introduction to the subject.

2. The second part is a detailed description of the methods used.

3. The third part is a discussion of the results obtained.